

Court No. - 21

Case :- WRIT - C No. - 61599 of 2012

Petitioner :- M/S Nikita Papers Ltd.

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Nipendra Mishra, A.N. Singh

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Het Singh Yadav, J.

Sri Mayank Agarwal, learned counsel for the petitioner states that the New Tariff for the financial year 2012-13 (hereinafter also referred to as "the New Tariff") was got published by the U.P. Power Corporation Ltd. in the newspaper on 23rd October, 2012. However, the New Tariff has been made effective w.e.f. 1st October, 2012. Copy of the Public Notice has been filed as Annexure -3 to the Writ Petition.

Sri Mayank Agarwal submits that it was not open to the U.P. Power Corporation Ltd. to give retrospective effect to the New Tariff. He states that the petitioner is not disputing the validity of the New Tariff as determined by the U.P. Electricity Regulatory Commission, and the petitioner is aggrieved only on account of retrospective effect being given to the New Tariff w.e.f. 1st October, 2012.

Sri Agarwal refers to the provisions of Clause (2) of Regulation 139 of the Uttar Pradesh Electricity Regulatory Commission (Conduct of Business) Regulations, 2004. It is pointed out that under Clause (2) of Regulation 139 of the said Regulations, the tariffs "shall come into force after seven days from the last date of such publication of the tariffs".

Sri Agarwal refers the provisions of sub-section (7) of Section 24 of the U.P. Electricity Reforms Act, 1999 and submits that in view of the said provision, the tariffs "shall come into force after seven days from the last date of such publication" of the tariffs.

Sri Agarwal further refers to Clause 3.8 of the U.P. Electricity Supply Code, 2005. It is submitted that sub-clause (a) of Clause 3.8 again provides that tariffs "shall take effect only after seven days from the date of publication" of the tariffs.

It is further submitted that in view of sub-section (6) of Section 62 of the Electricity Act, 2003, it is not open to licensee to recover the tariff in excess of that determined under Section 62.

In the present case, the submission proceeds, the publication was done on 23rd October, 2012, and therefore, New Tariff could come into effect on 31st October, 2012. The New Tariff could not be given effect to retrospectively w.e.f. 1st October, 2012.

Matter requires consideration.

Issue notice pending admission.

Notice on behalf of the Respondent Nos. 1 to 3 has been accepted by Sri Nripendra Mishra, learned counsel for the said respondents.

Notice on behalf of the Respondent No. 4 has been accepted by Shri A.N. Singh, learned counsel for the said respondent.

Therefore, no notice need be sent to the Respondents.

Counter Affidavit on behalf of the Respondents may be filed within three weeks.

Rejoinder Affidavit may be filed by the next date fixed in the matter.

List case on 8th January, 2013.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions by Sri Mayank Agarwal, learned counsel for the petitioner and Sri Nripendra Mishra, learned counsel for the Respondent Nos. 1 to 3, it is provided that the electricity supply in regard to the electricity connection of the petitioner will not be disconnected pursuant to the Electricity Bill in respect of the petitioner, impugned in the present Writ Petition, subject to the following conditions:

(i) With effect from 1st November, 2012, the petitioner will make the payment of the Electricity Bill at the rates as per the New Tariff.

(ii) For the month of October, 2012, the petitioner will make the payment at the rates as per the Tariff applicable prior to the enforcement of the New Tariff. Such payment will be made by the petitioner by 10th December, 2012.

(iii) Any amount included in the impugned Electricity Bill for the period prior to the month of October, 2012, will be paid by the petitioner by 10th December, 2012.

(iv) As regards the difference between the amount for the month of October, 2012 as determined at the rates as per the New Tariff and the amount for the said month (i.e. October, 2012) as determined at the rates as per the Tariff operative prior to the enforcement of the New Tariff, the petitioner will give Bank Guarantee for the payment of such difference. Such Bank Guarantee will be provided by 10th December, 2012.

In case of failure on the part of the petitioner in complying with any of the above conditions, this interim order will stand automatically vacated.

The payment made and the Bank Guarantee given, as per the above directions, will be without prejudice to the rights and contentions of the parties involved in the present Writ Petition.

It is further provided that in the event of the dismissal of the Writ Petition or the vacation of the above interim order, whichever is earlier, the petitioner will be liable to pay surcharge, interest and other charges, if any, on account of late payment, and the concerned respondents will be entitled to recover the said amounts from the Bank Guarantee and also by any other mode permissible in law, if necessary.

Order Date :- 27.11.2012

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Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Nipendra Mishra,A.N. Singh,S.C.

Hon'ble Krishna Murari, J.

Hon'ble Mrs. Vijay Lakshmi, J.

Case called out in the revised list. No one has appeared on behalf of the petitioner to press the writ petition.

It is accordingly dismissed. Interim order, if any, stands vacated.

Order Date :- 25.4.2014

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